

19STCV26069 19STCV26069

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Background

Facts

Plaintiff, Jacques Simon filed this action against Defendants, Brad R. Blood, Yvonne K. Goodin, and Villa Aqua Association, Inc. for fraud and related claims arising out of Plaintiff's purchase of a condominium unit from Defendants. Plaintiff alleges Defendants knew the pipes in the walls caused a loud, knocking noise, and failed to disclose this noise to Plaintiff prior to the sale.

Plaintiff filed his complaint on 12/12/22. The case proceeded to bench trial on 12/05/22. Plaintiff was unable to proceed with trial, and Defendants made a motion for judgment, which the Court granted. On 12/12/22, the Court entered judgment in favor of Defendants.

8/01/23 Hearing on
Original Motion for Attorneys' Fees

On 1/10/23, Defendants filed their original motion for attorneys' fees. The Court ruled, in pertinent part, as follows:

Defendants seek to recover attorneys' fees in the amount of \$56,381.00 against Plaintiff as the prevailing party in the action. Defendants provide evidence that the parties' purchase agreement, which formed the basis of this

action, contains an attorneys' fees clause.

Attorneys' fees are therefore appropriate pursuant to Civil Code §1717 and CCP §1033.5(a)(10)(A).

Defendants support their motion with the declaration of their attorney, who also includes all billing records for the case. Both the number of hours claimed and the rate at which they are claimed is reasonable.

Any opposition to the motion was due on or before 7/19/23. The Court has not received timely opposition. In the absence of opposition, the request for attorneys' fees in the amount of \$56,381 is granted.

Current Motion for Attorneys' Fees

a.

Fees Sought

On 3/13/26, Defendants filed the current motion for attorneys' fees. The current motion seeks an award of \$32,953 in fees incurred by Defendants in attempting to collect on the above attorneys' fees judgment against Plaintiff.

b.

Problem Posed

The vast majority of the fees sought by Defendants are fees that were incurred in connection with their attempts to have Plaintiff's home sold.

As Plaintiff correctly notes in opposition to the motion, Defendants' decision to pursue the sale of Plaintiff's home was objectively unreasonable. Indeed, it appears Defendants were hoping to take advantage of Plaintiff's self-represented status in attempting to have Plaintiff's primary home sold to satisfy their judgment against him.

c. Law

Governing Fee Awards in Connection with Unreasonable Litigation Strategies

Before addressing fee reductions

for unreasonable litigation strategy, it is essential to understand a threshold distinction drawn by the California Supreme Court in *Hsu v. Abbata*, 9 Cal.4th 863. Under *Hsu*, when one party obtains a simple, unqualified win on a contract claim, the trial court may not invoke equitable considerations unrelated to litigation success — such as the parties' behavior during settlement negotiations or discovery proceedings — to deny that party prevailing party status under section 1717. The *Hsu* Court reasoned that admitting such factors into the prevailing party determination would convert the attorney fees motion into a formless, limitless attack on the ethics and character of every party seeking fees.

However, the Court of Appeal in

EnPalm, LLC v. Teitler, 162 Cal. App. 4th 770 (2008) drew a critical distinction between the prevailing party determination and the fee amount determination. The *Hsu* rule applies to the initial question of who prevailed; it does not govern how much of a prevailing party's claimed fees were in fact reasonable. The *EnPalm* Court reasoned that using litigation conduct to deny prevailing party status entirely amounts to a true interference with contract, whereas denying fees that were not reasonably necessary is consistent with the reasonable expectations of contracting parties.

In *EnPalm*, the trial court reduced

the prevailing party's contractual fee award by 90 percent — from a lodestar of \$50,000 to \$5,000 — after finding that the prevailing party had engaged in pervasive dishonest conduct throughout the litigation, including lying under oath about material matters. The trial court found that the action may well have resolved in its early stages had the party been more forthcoming, and that the vast majority of the time incurred by the prevailing party's counsel was therefore not reasonably incurred. The Court of Appeal affirmed, holding that a trial court has discretion to reduce a prevailing party's contractual attorney fees to the extent they were unnecessary. The *EnPalm* court was careful to frame the issue not as whether a court may punish a party for litigation misconduct, but rather as whether the fees were objectively necessary to the litigation. The court held that a trial court may not reduce fees for purely subjective reasons — such as its views on the merits of a case, antipathy toward a party, her

counsel, or counsel's litigation strategy — or solely to punish a party for such reasons. The permissible basis for reduction is the objective finding that the party's conduct rendered the fees unnecessary.

d. Analysis

While this case is not as egregious as *EnPalm*, the Court finds the same logic applies. Plaintiff provided substantial evidence that Defendants knew they home they were attempting to foreclose upon was Plaintiff's primary home, such that foreclosure was not an available option to satisfy their judgment. Defendants did not meaningfully dispute or attempt to dispute that showing. All fees incurred in connection with the attempts to sell the home, therefore, were objectively unreasonably incurred, and are not awarded.

The Court will not conduct a line-item review of fees to determine which fees were incurred in connection with the attempts to sell the home and which were not. The parties must meet and confer in this regard in an attempt to resolve the issues.

The time spent meeting and conferring will not be compensated, as Defendants created the situation themselves and therefore it would not be reasonable to require Plaintiff to pay for the time spent to unravel the situation.

The hearing on the motion is continued for two months, to Tuesday, 11/03/26 at 8:30 a.m. in Department S27. If the parties resolve all issues, they must use the online reservation management system to take the matter off calendar. If the parties fail to do so, they must file a joint statement of items in dispute at least two weeks prior to the continued hearing date. The joint statement must be one document jointly submitted by both parties. It must include an indication of each billing entry that has not been resolved and each party's statement of reasons why the entry should or should not be allowed.

Defendants are ordered to give notice.